

M.V.Santhosh vs State Of Kerala on 15 July, 2013

Author: K. Ramakrishnan

Bench: K.Ramakrishnan

IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT:

THE HONOURABLE MR. JUSTICE K.RAMAKRISHNAN

THURSDAY, THE 7TH DAY OF AUGUST 2014/16TH SRAVANA, 1936

CrL.MC.No. 3207 of 2013 ()

MC.NO. 157/2013 OF SUB DIVISIONAL MAGISTRATE COURT, THALASSERY

PETITIONER/COUNTER PETITIONER :

M.V.SANTHOSH,
S/O. KRISHNAN, MEYAN VEETIL,
CHERUTHAZHAM, NARIKARAVALLI.

BY ADVS.SRI.I.V.PRAMOD
SRI.S.U.NAZAR

RESPONDENTS/ STATE & PETITIONER :

1. STATE OF KERALA,
REPRESENTED BY THE PUBLIC PROSECUTOR
HIGH COURT OF KERALA, COCHIN - 31.
2. SUB DIVISIONAL MAGISTRATE,
THALASSERY
P.O. THALASSERY,
KANNUR - 670101
3. S.I OF POLICE,
PAYANGADI POLICE STATION,
KANNUR - 670303.

R1 TO R3 BY PUBLIC PROSECUTOR SMT. P.MAYA

THIS CRIMINAL MISC. CASE HAVING BEEN FINALLY HEARD ON 12-06-2014,
ALONG WITH CRL.M.C. NO. 3375/2013 & CONNECTED CASES, THE COURT
ON 07-08-2014 PASSED THE FOLLOWING:

Mn

...2/-

Crl.MC.No. 3207 of 2013 ()

APPENDIX

PETITIONERS' ANNEXURES :

ANNEXURE A1: A TRUE COPY OF THE PRELIMINARY ORDER IN M.C.157/2013
OF SDM, THALASSERY DATED 15.7.2013.

RESPONDENT(S)' EXHIBITS : NIL

//TRUE COPY//

P.S. TO JUDGE

Mn

"CR"

K. RAMAKRISHNAN, J.

.....

Crl.M.C.Nos.3207,3375,3409,3972,3973

4117,4131,4132,4133,4134,4135,4136

4137,4138,4139 & 4320 of 2013,

&

Crl.M.C.Nos.1253,1254, 1255,

1256,1257,1383,1384,1394,1473,

1474,1604,1666 & 2778 of 2014

.....

Dated this the 7th day of August, 2014.

O R D E R

Counters petitioners in the proceedings initiated by Sub Divisional Magistrate, Thalassery under Section 107 of the Code of Criminal Procedure (hereinafter referred to as 'the Code') namely M.C.Nos.157, 159, 158, 184, 183, 138, 202, 188, 203, 204, 189, 187, 141, 205, 206 and 240 of 2013, 18, 16, 15, 17, 14, 22, 23, 21, 2, 3, 35, 24 and 4 of 2014 respectively have filed these petitions to quash the proceedings under Section 482 of Code Criminal Procedure.

2. Since the set of facts in all these cases deal with a common question of law regarding the initiation of proceedings by the authorities under Section 107 to 111 of Code of Criminal Procedure and irregularities in the proceedings, all these cases have been taken together for consideration on a common question of law raised in all these matters and disposed of by a common judgment.

3 In all these cases, the Sub Divisional Magistrate, Thalassery has initiated proceedings against the petitioners under Section 107 of Code of Criminal Procedure and passed an order under Section 111 of the Code requesting them to execute a bond under Section 109 of Code of Criminal Procedure which is being challenged by the petitioners. In all these cases, it was mentioned in the impugned preliminary order that the Sub Divisional Magistrate had received a report from the Station House Officer of the concerned Police Station apprehending involvement of these petitioners in certain criminal activities and causing public tranquility and disturbing peace and wanted the Sub Divisional Magistrate to initiate proceedings under Section 107 of Code of Criminal Procedure. In all these cases, except mentioning the case numbers and section of the offences, the Sub Divisional Magistrate, without mentioning the substance of information and the reason for satisfaction, had issued a stereo typed order requesting the petitioners to execute a bond to keep peace and order in the locality for a particular period or to show cause as to why they should not be directed to execute bond as aforesaid which are being challenged by the petitioners by filing the above petitions.

4. Before going into the facts of the case, I may consider the relevant provisions of the Code regarding the procedure to be followed by the Sub Divisional Magistrate before initiating proceedings and issuing a preliminary order requesting the counter petitioners to execute the bond and also some precedents relevant on this aspect.

5. Chapter VIII of Code of Criminal Procedure deals with security for keeping the peace and for good behaviour. Section 106 to 120 deals with the procedure and the circumstances under which the proceedings will have to be initiated etc., which reads as follows:

"106. Security for keeping the peace on conviction:- (1) When a Court of Session or Court of a Magistrate of the first class convicts a person of any of the offences specified in sub-section (2) or of abetting any such offence and is of opinion that it is necessary to take security from such person for keeping the peace, the Court may, at the time of passing sentence on such person, order him to execute a bond, with or without sureties, for keeping the peace for such period, not exceeding three years, as it thinks fit. (2) The offences referred to in sub-section (1) are-

(a) any offence punishable under Chapter VIII of the Indian Penal Code (45 of 1860), other than an offence punishable under section 153A or section 153B or section 154 thereof;

(b) any offence which consists of, or includes, assault or using criminal force or committing mischief;

(c) any offence of criminal intimidation;

(d) any other offence which caused, or was intended or known to be likely to cause, a breach of the peace. (3) If the conviction is set aside on appeal or otherwise, the bond so executed shall become void.

(4) An order under this section may also be made by an Appellate Court or by a Court when exercising its powers of revision.

107. Security for keeping the peace in other cases:- (1) When an Executive Magistrate receives information that any person is likely to commit a breach of the peace or disturb the public tranquility or to do any wrongful act that may probably occasion a breach of the peace or disturb the public tranquility and is of opinion that there is sufficient ground for proceeding, he may, in the manner hereinafter provided, require such person to show cause why he should not be ordered to execute a bond with or without sureties, for keeping the peace of such period, not exceeding one year, as the Magistrate thinks fit. (2) Proceedings under this section may be taken before any Executive Magistrate when either the place where the breach of the peace or disturbance is apprehended is within his local jurisdiction or there is within such jurisdiction a person who is likely to commit a breach of the peace or disturb the public tranquility or to do any wrongful act as aforesaid beyond such jurisdiction.

108. Security for good behaviour from persons disseminating seditious matters:- (1) When an Executive Magistrate receives information that there is within his local jurisdiction any person who, within or without such jurisdiction,-

(i) either orally or in writing or in any other manner, intentionally disseminates or attempts to disseminate or abets the dissemination of,-

(a) any matter of the publication of which is punishable under section 124A or section 153A or section 153B or section 295A of the Indian Penal Code (45 of 1860), or

(b) any matter concerning a Judge acting or purporting to act in the discharge of his official duties which amounts to criminal intimidation or defamation under the Indian Penal Code (45 of 1860)

(ii) makes, produces, publishes or keeps for sale, imports, exports, conveys, sells, lets to hire, distributes, publicly exhibits or in any other manner puts into circulation any obscene matter such as is referred to in section 292 of the Indian Penal Code (45 of 1860), and the Magistrate is of opinion that there is sufficient ground for proceeding, the Magistrate may, in the manner hereinafter provided, require such person to show cause why he should not be ordered to execute a bond, with or without sureties, for his good behaviour for such period, not exceeding one year, as the Magistrate thinks fit.

(2) No proceedings shall be taken under this section against the editor, proprietor, printer or publisher of any publication registered under, and edited, printed and published in conformity with, the rules and laid down in the Press and Registration of Books Act, 1867 (25 of 1867), with reference to any matter contained in such publication except by the order or under the authority of the State Government or some officer empowered by the State Government in this behalf.

109. Security for good behaviour from suspected persons.- When an Executive Magistrate receives information that there is within his local jurisdiction a person taking precautions to conceal his presence and that there is reason to believe that he is doing so with a view to committing a cognizable offence, the Magistrate may, in the manner hereinafter provided, require such person to show cause why he should not be ordered to execute a bond, with or without sureties, for his good behaviour for such period, not exceeding one year, as the Magistrate thinks fit.

110. Security for good behaviour from habitual offenders.- When an Executive Magistrate receives information that there is within his local jurisdiction a person who

(a) is by habit a robber, house-breaker, thief, or forger, or

(b) is by habit a receiver of stolen property knowing the same to have been stolen, or

(c) habitually protects or harbours thieves, or aids in the concealment or disposal of stolen property, or

(d) habitually commits, or attempts to commit, or abets the commission of, the offence of kidnapping, abduction, extortion, cheating or mischief, or any offence punishable under Chapter XII of the Indian Penal Code (45 of 1860), or under section 489A, section 489B, section 489C or section 489D of that Code, or

(e) habitually commits, or attempts to commit, or abets the commission of, offences, involving a breach of the peace, or

(f) habitually commits, or attempts to commit, or abets the commission of-

(i) any offence under one or more of the following Acts, namely:-

- (a) the Drugs and Cosmetics Act, 1940 (23 of 1940);
- (b) the Foreign Exchange Regulation Act, 1973, (46 of 1973)
- (c) the Employees' Provident Funds and Family Pension Fund Act, 1952, (19 of 1952);
- (d) the Prevention of Food Adulteration Act, 1954 (37 of 1954);
- (e) the Essential Commodities Act, 1955 (10 of 1955)

(f) the Untouchability (Offences) Act, 1955 (22 of 1955);

- (g) the Customs Act, 1962 (52 of 1962);
 - (h) the Foreigners Act, 1946 (31 of 1946)
- or

(ii) any offence punishable under any other law providing for the prevention of hoarding or profiteering or of adulteration of food or drugs or of corruption, or

(g) is so desperate and dangerous as to render his being at large without security hazardous to the community, such Magistrate may, in the manner hereinafter provided, require such person to show cause why he should not be ordered to execute a bond, with sureties, for his good behaviour for such period, not exceeding three years, as the Magistrate thinks fit.

111. Order to be made.- When a Magistrate acting under Section 107, section 108, section 109 or section 110, deems it necessary to require any person to show cause under such section, he shall make an order in writing, setting forth the substance for the information received, the amount of the bond to be executed, the term of which it is to be in force, and the number, character and class of sureties (if any) required.

112. Procedure in respect of person present in Court.- If the person in respect of whom such order is made is present in Court, it shall be read over to him, or, if he so desires, the substance thereof shall be explained to him.

113. Summons or warrant in case of person not so present.- If such person is not present in Court, the Magistrate shall issue a summons requiring him to appear, or when such person is in custody, a warrant directing the officer in whose custody he is to bring him before the Court:

114. Copy of order to accompany summons or warrant.-

Every summons or warrant issued under section 113 shall be accompanied by a copy of the order made under section 111, and such copy shall be delivered by the officer serving or executing such summons or warrant to the person served with, or arrested under, the same.

115. Power to dispense with personal attendance.- The Magistrate may, if he sees sufficient cause, dispense with the personal attendance of any person called upon to show cause why he should not be ordered to execute a bond for keeping the peace or for good behaviour and may permit him to appear by a pleader.

116. Inquiry as to truth of information.- (1) When an order under section 111 has been read or explained under section 112 to a person in Court, or when any person appears or is brought before a Magistrate in compliance with, or in execution of, a summons or warrant, issued under section 113, the Magistrate shall proceed to inquire into the truth of the information upon which action has been taken, and to take such further evidence as may appear necessary.

(2) Such inquiry shall be made, as nearly as may be practicable, in the manner hereinafter prescribed for conducting trial and recording evidence in summons-cases.

(3) After the commencement, and before the completion, of the inquiry under sub-section (1) the Magistrate, if he considers that immediate measures are necessary for the prevention of a breach of peace or disturbance of the public tranquility or the commission of any offence or for the public safety, may, for reasons to be recorded in writing, direct the person in respect of whom the order under section 111 has been made to execute a bond, with or without sureties, for keeping the peace or maintaining good behaviour until the conclusion of the inquiry, and may detain him in custody until such bond is executed or, in default of execution, until the inquiry is concluded:

(4) For the purposes of this section the fact that a person is an habitual offender or is so desperate and dangerous as to render his being at large without security hazardous to the community may be proved by evidence of general repute or otherwise.

(5) Where two or more persons have been associated together in the matter under inquiry, they may be dealt with in the same or separate inquiries as the Magistrate shall think just.

(6) The inquiry under this section shall be completed within a period of six months from the date of its commencement, and if such inquiry is not so completed, the proceedings under this Chapter shall, on the expiry of the said period, stand terminated unless, for special reasons to be recorded in writing, the Magistrate otherwise directs:

(7) Where any direction is made under sub-section (6) permitting the continuance of proceedings, the Sessions Judge may, on an application made to him by the aggrieved party, vacate such direction if he is satisfied that it was not based on any special reason or was perverse.

117. Order of give security.- If, upon such inquiry, it is proved that it is necessary for keeping the peace or maintaining good behaviour, as the case may be, that the person in respect of whom the inquiry is made should execute a bond, with or without sureties, the Magistrate shall make an order accordingly:

118. Discharge of person informed against.- If, an inquiry under section 116, it is not proved that it is necessary for keeping the peace or maintaining good behaviour, as the case may be, that the person in respect of whom the inquiry is made, should execute a bond, the Magistrate shall make an entry on the record to that effect, and if such a person is in custody only for the purpose of the inquiry, shall release him, or, if such person is not in custody, shall discharge him.

119. Commencement of period for which security is required.- (1) If any person, in respect of whom an order requiring security is made under section 106 or section 117, is, at the time such order is made, sentenced to, or undergoing a sentence of, imprisonment, the period for which such security is required shall commence on the expiration of such sentence.

(2) In other cases such period shall commence on the date of such order unless the Magistrate, for sufficient reason, fixes a later date.

120. Contents of bond.- The bond to be executed by any such person shall bind him to keep the peace or to be of good behaviour, as the case may be, and in the latter case the commission or attempt to commit, for the abatement of, any offence punishable with imprisonment, wherever it may be committed, is a breach of the bond."

6. Form 12, 13 & 14 of Schedule II of the Code deal with the nature of things to be mentioned in the bond and summons which reads as follows:

Form No.12 BOND TO KEEP THE PEACE (See sections 106 and 107) WHEREAS I, (name) inhabitant of (place), have been called upon to enter into a bond to keep the peace for the term of or until the completion of the inquiry in the matter of now pending in the Court of, I hereby bind myself not to commit a breach of the peace, or do any act that may probably occasion a breach of the peace, during the said term or until the completion of the said inquiry and, in case of my making default therein, I hereby bind myself to forfeit to Government the sum of rupees.....

Dated, this day of, 20....

(Signature) Form No.13 BOND FOR GOOD BEHAVIOUR (See Sections 108, 109 and 110) WHEREAS I, (name), inhabitant of (place), have been called upon to enter into a bond to be of good behaviour to Government and all the citizens of India for the term of (state the period) or until the completion of the inquiry in the matter of now pending in the Court of, I hereby bind myself to be of good behaviour to Government and all the citizens of India during the said term or until

the completion of the said inquiry; and ' in case of may making default therein, I hereby bind myself to forfeit to Government the sum of rupees

Dated, this day of, 20....

(Signature) (Where a bond with sureties is to be executed, add....) We do hereby declare ourselves sureties for the above -named that he will be of good behaviour to Government and all the citizens of India during the said term or until the completion of the said inquiry; and, in case of his making default therein, we bind ourselves, jointly and severally to forfeit to Government the sum of rupees.....

Dated, this day of, 20....

(Signature) Form No.14 SUMMONS ON INFORMATION OF A PROBABLE BREACH OF THE PEACE (See section 113) To of

WHEREAS it has been made to appear to me by credible information that..... (state the substance of the information), and that you are likely to commit a breach of the peace (or by which act a breach of the peace will probably be occasioned), you are hereby required to attend in person (or by a duly authorised agent) at the office of the Magistrate of on the day of 20..... at ten O' Clock in the forenoon, to show cause why you should not be required to enter into a bond for rupees[when sureties are required, add, and also to give security by the bond of one (or two, as the case may be) surety (or sureties) in the sum of rupees(each if more than one)] that you will keep the peace for the term of

Dated, this day of....., 20....

(Seal of the Court) (Signature)

7. Section 111 of the Code of Criminal Procedure says that, when a magistrate acting under Section 107, Section 108, Section 109 or Section 110 deems it necessary to require any person to show cause under such Section, he shall make an order in writing setting forth the substances of the information received, the amount of the bond to be executed, the term for which it is to be in force and the number, character and the class of sureties if any required. So, it is clear from this that before initiating proceedings, the magistrate has to pass an order satisfying himself regarding the existence of an apprehension of imminent breach of peace likely to be committed by the counter petitioners and to prevent such breach of peace or tranquility, they must be asked to execute bond for a particular period to avoid such breach of peace or tranquility in that locality.

8. In the decision reported in Madhu Limaye and another Vs. Sub Divisional Magistrate, Monghyr and others [AIR 1971 (SC) 2486], the Constitution Bench of Supreme Court of India dealt with the safe guards to be provided before initiating proceedings under the above provisions and this has been considered in length in Paragraphs. 33, 34, 35, 36 & 37 of the decision which reads as follows:

"33. The gist of S.107 may now be given. It enables certain specified classes of Magistrates to make an order calling upon a person to show cause why he should not be ordered to execute a bond, with or without sureties for keeping the peace for such period not exceeding one year as the Magistrate thinks fit to fix. The condition of taking action is that the Magistrate is informed and he is of opinion that there is sufficient ground for proceeding that a person is likely to commit a breach of the peace or disturb the public tranquility or to do any wrongful act that may probably occasion a breach of the peace or disturb the public tranquility. The Magistrate can proceed if the person is within his jurisdiction or the place of the apprehended breach of the peace or disturbance is within the local limits of his jurisdiction. The section goes on to empower even a Magistrate not empowered to take action, to record his reason for acting, and then to order the arrest of the, person (if not already in custody or before the court) with a view to sending him before a Magistrate empowered to deal with the case, together with a copy of his reason. The Magistrate before whom such a person is sent may in his discretion detain such person in custody pending further action by him.

34. The section is aimed at persons, who cause a reasonable apprehension of conduct likely to lead to a breach of the peace or disturbance of the public tranquility. This is an instance of preventive justice which the courts are intended to administer. This provision like the preceding one is in aid of orderly society and seeks to nip in the bud conduct subversive of the pace and public tranquility. For this purpose Magistrate are invested with large judicial discretionary powers for the preservation of public peace and order. Therefore the jurisdiction for such provisions is claimed by the State to be in the function of the State which embraces not only the punishment of offenders but, as far as possible, the prevention of offences.

35. Both the sections are counter-parts of the same policy, the first applying when by reason of the conviction of a person, his past conduct leads to an apprehension for the further and the second applying where the Magistrate, on information, is of the opinion that unless prevented from so acting, a person is likely to act to the detriment of the public peace and public tranquility.

The argument is that these sections (more particularly S.107) are destructive of freedom of the individual guaranteed by Art.19 (1)

(a) (b)) and (d) and are not saved by the restrictions contemplated by cls.(2) to (5) of the Article. It is also contended that there are no proper procedural safeguards in the sections that follow. Before we deal with these contentions it is necessary to glance briefly at sections 112-119 of Division B and sections 120-126-A of Division C.

36. We have seen the provision of S.107. That section says that action is to be taken 'in the manner hereinafter provided' and this clearly indicates that it is not open to a Magistrate in such a case to depart from the procedure to any substantial extent. This is very salutary because the liberty of the

person is involved and the law is rightly solicitous, that this liberty should only be curtailed according to its own procedure and not recording to the whim of the Magistrate concerned. It behoves us, therefore, to emphasise the safeguards built into the procedure because from them will arise the consideration of the reasonableness of the restrictions in the interest of public order or in the interest of the general public.

37. The procedure beings with S.112.. It requires that the Magistrate acting under S.107 shall make an order in writing, setting forth the substance of the information received, the amount of the bond, the term for which it is to be in force and the number, character and class of sureties (if any) required. Since the person to be proceeded against has to shaw cause, it is but natural that he must know the grounds for apprehending a breach of the peace of disturbance of the public tranquility at his hands. Although the section speaks of the 'substance of the information' it does not mean the order should not be full. It may not repeat the information bodily but it must give propose notice of what has moved the Magistrate to take the action. This order is the foundation of the jurisdiction and the word 'substance' means the essence of the most important parts of the information."

9. In the decision reported in Moidu Vs. State of Kerala [1982 KHC 139] also this Court has dealt with the scope and ambit of Section 107 and what are all the things to be considered by the magistrate before passing an order. In para.4 of the said judgment, it has been observed that, to take proceedings against the person under Section 107 of Code of Criminal Procedure, there must be;

i) receipt of the information by the magistrate

ii) such information must be that, a person is likely to commit breach of peace or disturb public tranquility and

iii) on such information, the magistrate must be able to form an opinion that there are sufficient grounds for proceeding. There is no controversy with regard to the first and third elements. But, it is really the scope of the second namely; what should be the nature of information concerning, the likelihood of commission of breach of peace or disturbance of public tranquility that calls for consideration. No hard and fast rule can be laid down as regards the nature and source of information. As observed by C. S. Reddy Vs. State of A.P., [1973 CriLJ 1713], it may be that the past conduct and wrongful act is the some guideline. It is not the likelihood of breach of peace at any point of time that is relevant. The breach of peace must be imminent to justify action under Section 107. The information about past conduct or wrongful act of the past must not be remote or isolated, must be relatable to the present apprehension in the sense that, it must have some relevance to the apprehension of likelihood of breach of peace or disturbance of public tranquility. The contention that past conduct should not at all be the basis for taking proceedings under Section 107 does not appears to be sound. There is no justification to read such a limitation into the Section. In fact, it is the events of the past that would furnish material to infer about the tendencies of a person which in turn will have bearing on the likelihood of similar conduct on his part in the present or immediate future. To quote the words of Venkatarama Iyer J. in K.N. Joglekar Vs. Commissioner of Police [AIR 1957 (SC) 28], what a person is likely to do in future can only be a matter of inference from various circumstances and his past record will be valuable and often the only record on which it could be

made. The same idea was expressed by the Supreme Court in *Ujagar Singh Vs. State of Punjab* [AIR 1952 SC 350], as "the past conduct or antecedent history of a person can be taken into account when making an detention order and as a matter of fact, it is largely from prior events showing the tendencies or inclinations of the man that an inference could be drawn whether he is likely even in the future to act in a manner prejudicial to the maintenance of public order." In the same decision, it has been observed that it is true that Section 107 is not punitive in nature. But, it is intended to prevent apprehended breaches of peace. But, that does not mean that past violent activities especially those of immediate past cannot be taken into consideration to arrive at the conclusion that there is likelihood of breach of peace in future. In para.13 of the judgment, it has been observed that regard being had to the object of Section 107 of the Code of Criminal Procedure and particularly the fact that it is not intended as a punitive action, but preventing even where punitive action is taken, preventive action may be called for, if the character of information is such that the magistrate would be justified in acting on such information. As a rule of prudence, it may be said that information about the events which are subject matter of pending prosecution, may not by themselves be relied on by the magistrate as information sufficient to warrant an order under Section 107 of Code of Criminal Procedure. Ultimately, it would be for the magistrate to consider whether on an overall consideration of facts available to him by way of information, he could form the opinion that the person against whom he was proposing to make action under Section 107 was likely to cause imminent breach of peace or disturb the public tranquility. We make it clear that, to the extent to the decision of this court in *Chirukandath Chandrasekharan Vs. State of Kerala* [1970 KLJ 61], can be read as prohibiting a reliance on such information in categorical terms. We do not agree. As we stated earlier, had it been stated as a rule of prudence or caution, we may not have been reason to disagree with this. In para.17 of the same judgment, while dealing with a case namely *Crl.M.P.No.1762/1980* of this nature, this Court has after extracting the gist of the case registered against the counter petitioners therein, observed that the general statement that the counter petitioners are RSS workers and there exists enmity between RSS and Marxists Party workers in Thalassery and suburban areas and there is tension prevailing in various places does not by itself justify action under Section 107 of Code of Criminal Procedure against the workers of each group. The only other materials stated is that, there are some crime cases registered against the counter petitioners. What those type of cases are and how they are related to the apprehension of breach of peace are not evident from the preliminary order.

10. So, it is clear from the above decision that while initiating proceedings under Section 107 of Code of Criminal Procedure, the Magistrate must first pass an order under Section 111 of Code of Criminal Procedure stating the nature of information received, the relevant factors which influenced the mind of the Magistrate to form an opinion that the counter petitioners are likely to cause imminent breach of peace and public tranquility in a particular place and the probable period during which it is likely to disturb peace or tranquility in a particular locality and in order to prevent the same, it is necessary to take preventive action against them and also the period of bond for good behavior has to be executed etc., has to be explained in the order itself. Mere extraction of mere information and citing the crimes against the counter petitioners and directing them to execute the bond alone without co relating those informations to the existence of imminent apprehension of peace or tranquility to be committed or anticipated from the counter petitioners will not be sufficient in such circumstances.

11. In the decision reported in Henry Vijayakumar Vs. State of Kerala [2009 (4) KLT 495], this court has held that Annexure 3 order does not disclose the contents of the report based on which Sub Divisional Magistrate expressed satisfaction to invoke the power under Section 107 of Code of Criminal Procedure, requiring the petitioner to appear to show cause why he shall not execute a bond. It does not show what was the allegations raised in the complaint against the petitioner, based on which, the Sub Divisional Magistrate found that it is necessary to require the petitioner to execute the bond. When it is under Annexure 3 foundation, the entire case is build up, the Sub Divisional Magistrate is bound to disclose the entire facts so that the petitioner could resist the proceedings when he appears.

12. It is also clear from this that , the preliminary order issued against the counter petitioners must contain the nature of information received which prompted the Sub Divisional Magistrate to form an opinion that the counter petitioners are likely to involve in some imminent act which is likely to affect the public peace and tranquility in a particular locality and prevent the same, action has to be taken against them and only if those things are mentioned in the order, then only they must be able to answer the same. Otherwise, the proceedings is bad in law.

13. In the decision reported in Rakesh Singh Vs. State of U.P [2010 CriLJ 2267], the High Court of Allahabad had occasion to consider the same question and it has been observed in that judgment that the impugned notice has been issued on a typed format in a cyclostyled manner. In the said typed format, only the name, date and police station has been filled in the gaps. It is further observed that in violation of Section 111 of Code of Criminal Procedure, the magistrate did not set forth the substance of the information received by him in the impugned notice which is mandatory in nature and non compliance of the same, will vitiate the entire proceedings. In para.17 of that judgment, it is observed that the preliminary order contemplated under Section 111 of Code of Criminal Procedure is a judicial order and has to be prepared and drawn up cautiously and carefully in compliance with the provisions of Section 111 of Code of Criminal Procedure and the order must contain reasons of the magistrate's satisfaction. The substance of the information is the matter upon which he has to show cause. If the substance of the information is not given in the order under Section 111 of the Code of Criminal Procedure, the person against whom the order has been made will remain in confusion. The extent of information which must be set forth depends in each case upon the circumstance of that case. The basic object of preliminary order being to give the person proceeded against an opportunity to meet the allegation made against him as well as the nature of order proposed.

14. So, it is clear from the above decisions that it is not the report that has been received alone is sufficient, but the satisfaction of the magistrate regarding the information mentioned in the report which is sufficient to form an opinion for the magistrate to initiate proceedings against the petitioners and the order under Section 111 of Code of Criminal Procedure must contain the nature of information received, the particulars of information mentioned and the information which made the magistrate to form an opinion regarding the existence of imminent danger of public peace and tranquility which has to be prevented by initiating proceedings against the counter petitioners invoking the power under Section 107 or 109 of Code of Criminal Procedure. Those things must be clear from the order itself. Mere filling the form or mere reproducing the words in the form 14 of the

notice to be issued, without specifying the nature of information, reason for forming the opinion etc., but, extracting the crime numbers mentioned alone is not sufficient compliance of passing order under Section 111 of Code of Criminal Procedure and failure to pass such an order will vitiate the entire proceedings. With the above principles in mind the cases in hand have to be considered.

15. In all the above cases, proceedings were initiated by the Sub Divisional Magistrate on the basis of crimes registered by the Station House Officer stating a vague information that the petitioners are likely to indulge in criminal activities causing public disorder and affecting peace in the locality, issued the impugned orders. The number of cases in which the counter petitioners involved in each cases as extracted in the impugned orders are being tabulated as follows:

Sl. Case No. Proceedings No. No. of cases involved Period of Date of No. in the lower with particulars bond Order court insisted 1 CrI.MC.No. MC.No.157/2013 1.Cr.No.789/12 u/s143, 1 year 15.7.2013 3207/2013 147,148,448,427,436 r/w 149 IPC.

	2.Cr.No.792/12 u/s 143,145,147,148,341,35 3,308 r/w149 IPC & 117 (e) of KP Act & 3(1) of PDPP Act. Both of Payangadi police station		
2 CrI.MC.No. MC.159/13 3375/2013	1.Cr.No.362/08 u/s 1 year 341,323,324 r/w 34 IPC	15.7.2013	
	2.Cr.No.466/10 u/s 143,147,148,448,436,42 7 r/w 149 IPC		
	3.Cr.No.782/10 u/s 143,147,148,283,447,33 2,435,427 r/w 149 IPC & Sec.3(1) of PDPP & 117 of KPAAct		
	All of Payangadi PS		
3 CrI.MC.No. MC.158/13 3409/2013	1.Cr.No.411/10 1 year u/s143,147,341,323,353 r/w 149 IPC	02/07/13	
	2.Cr.No.412/10 u/s 143,147,148,341,323,32 4,308 r/w 149 IPC		
	3.Cr.No.782/12 u/s 143,147,283,447,333,43 5,427 r/w 149 IPC &		

Sec.3(1)4 of PDPP Act
and 117 (e) of KPAAct.

All of Payangadi PS

Sl. No.	Case No.	Proceedings No. in the lower court	No. of cases involved with particulars	Period of bond insisted	Date of Order
4	Crl.MC.No. MC.184/2013 3972/2013		1.Cr.No.633/12 u/s 143,147,148,283,447,332,353,427 r/w 149 IPC 2.Cr.No.32/13 u/s 143,147,148,323,324,308 r/w 149 IPC 3.Cr.No.100/13 u/s 143,147,148,294(b),506 (1) r/w 149 IPC All of Peringome PS	1 year	14.8.2013
5	Crl.MC.No. MC.183/13 3973/2013		1.Cr.No.633/13 u/s 143,147,148,283,447,332,353,427 r/w 149 IPC & Sec.3(1) of PDPP Act. 2.Cr.No.636/12 u/s 143,147,148 r/w 149 IPC & sec.3(2) of PDPP Act. 3.Cr.No.642/12 u/s 143,147,148,323,324 r/w 149 IPC 4.Cr.No.37/13 u/s 143,147,148,341,323,324,308 r/w 149 IPC All of Peringome PS	1 year	14.8.2013
6	Crl.MC.No. MC.No.138/13 4117/2013		1.Cr.No.102/12 u/s 341,323,324 r/w 34 IPC 2. Cr.No.727/12 u/s 143,147,341,323,447,294(b), 354 r/w 149 IPC	1 year	19.6.2013

3.Cr.No.148/12 u/s
143,147,341,323,447,29
4(b),354 r/w 149 IPC

All of Chakkarakkallu
PS

Sl. No.	Case No.	Proceedings No. in the lower court	No. of cases involved with particulars	Period of bond insisted	Date of Order
7	Crl.MC.No. MC.202/13 4131/2013		1.Cr.No.184/12 u/s 143,147,148,341,323,32 4,308,427 r/w 149 IPC 2.Cr.No.798/12 u/s 143,147,148,452,427,50 6(i) r/w 149 IPC Both of Chakkarakkallu PS	1 year	14.8.2013
8	Crl.MC.No. MC.188/13 4132/2013		1.Cr.No.742 u/s 323, 324 r/w 34 IPC 2.Cr.No.1180/12 u/s 143,147,148,341,326,30 8 r/w 149 IPC Both of Chakkarakkallu PS	1 year	14.8.2013
9	Crl.MC.No. MC.No.203/13 4133/2013		1.Cr.No.784/12 u/s 143,147,148,452,427,43 6 r/w 149 IPC 2.Cr.No.785/12 u/s 143,147,148,457,380,46 1, 427 r/w 149 IPC Both of Chakkarakkallu PS	1 year	14.8.2013
10	Crl.MC.No. MC.204/13 4134/2013		1.Cr.No.102/12 u/s 341, 323,324 r/w 34 IPC 2. Cr.No.718/12 u/s 143,147,148,341,323, 324 r/w 149 IPC	1 year	14.8.2013

Both of Chakkarakkallu
PS

Sl. No.	Case No.	Proceedings No. in the lower court	No. of cases involved with particulars	Period of bond insisted	Date of Order
11	Crl.MC.No. 4135/2013	MC.No.189/13	1.Cr.No.784/12 u/s 143,147,148,452,427,43 6 r/w 149 IPC 2.Cr.No.785/12 u/s 143,147,148,457,380,46 1,427 r/w 149 IPC 3.Cr.No.809/12 u/s 143,147,148,452,427 r/w 149 IPC 4. Cr.No.803/12 u/s 143,147,148,452,427 r/w 149 IPC All of Chakkarakkallu PS	1 year	14.8.2013
12	Crl.MC.No. 4136/2013	MC.187/13	1.Cr.No784/12 u/s 143,147,148,452,427,43 6 r/w 149 IPC 2.Cr.No.785/12 u/s 143,147,148,457,380,46 1,427 r/w 149 IPC Both of Chakkarakkallu PS	1 year	14.8.2013

Sl. No.	Case No.	Proceedings No. in the lower court	No. of cases involved with particulars	Period of bond insisted	Date of Order
13	Crl.MC.No. 4137/2013	MC.141/13	1.Cr.No.784/12 u/s 143,147,148,452,427,43 6 r//w 149 IPC 2.Cr.No.785/12 u/s 143,147,148,457,380,46	1 year	19.6.13

1,427 r/w 149 IPC

3.Cr.No.803/12 u/s
143,147,148,452,427 r/w
149 IPC

4.Cr.No.809/12 u/s
143,147,148,452,427 r/w
149 IPC

All of Chakkarakkallu
PS

14 Crl.MC.No. MC.205/2013 1.Cr.No.718/12 u/s 1 year 14.8.2013
4138/2013 143,147,148,341,323,32
4 r/w 34 IPC

2.Cr.No.727/12 u/s
143,147,341,323,447,
294 (b), 354 r/w 149 IPC
Both of Chakkarakkallu
PS

15 Crl.MC.No. MC.206/13 1.Cr.No.803/12 u/s One year 14.8.13
4139/2013 143,147,148,452,427 r/w
149 IPC

2. Cr.No.809/12 u/s
143,147,148,452,427 r/w
149 IPC

Both of Chakkarakkallu
PS

Sl. No.	Case No.	Proceedings No. in the lower court	No. of cases involved with particulars	Period of bond insisted	Date of Order
16	Crl.MC.No. MC.240/13 4320/2013		1.Cr.No.149/13 u/s 143,147,148,452,427,30 7 r/w 149 IPC	1 year	16.8.2013
			2.Cr.No.152/13 u/s 143,147,148,447,427 r/w 149 IPC		
			Both of Chakkarakkallu PS		
17	Crl.MC.No. MC.18/14		1.Cr.No.978/12 u/s	3 years	07/02/14

1253/2014		143,147,148,283,353, 332,308 r/w 149 IPC & Sec.3(1) of PDPP Act. 2.Cr.No.991/12 u/s 143,147,148,452,436, 427 r/w 149 IPC. 3.Cr.No.994/12 u/s 143,147,148,452,453, 506(ii),294(b),427 r/w 149 IPC All of Koothparamba PS			
18 Crl.MC.No. MC.16/14 1254/2014		1.Cr.No.978/12u/s 143,147,148,283,353, 332,308 r/w 149 IPC & Sec.3(1)of PDPP Act. 2.Cr.No.979/12 u/s 143,147,148,427 r/w 149 IPC & Sec.3(1)of PDPP Act. 3.Cr.No.980/12 u/s 143,147,148,427 r/w 149 IPC All of Koothparamba PS	3 years	07/02/14	
Sl. No.	Case No.	Proceedings No. in the lower court	No. of cases involved with particulars	Period of bond insisted	Date of Order
19	Crl.MC.No. MC.15/14 1255/2014		Cr.No.996/12 u/s 143,147,148,452,436, 427 r/w 149 IPC of Koothparama PS	3 years	07/02/14
20	Crl.MC.No. MC.17/2014 1256/2014		Cr.No.990/12 u/s 143,147,148,308,427 r/w 149 IPC & Sec.3 & 5 of ES Act of Koothparama	3 years	07/02/14

PS

21 CrI.MC.No. MC.14/2014 Cr.No.978/12 u/s 3 years 07/02/14
1257/2014 143,147,148,283,353,

332,308 r/w 149 IPC &
Sec.3(1) of PDPP Act of
Koothparamba PS

22 CrI.MC.No. MC.No.22/2014 1.Cr.No.515/11 u/s 3 years 07/02/14
1383/2014 323,326 IPC

2. Cr.No.782/12 u/s
143,147,148,283,447,

332,435,427 r/w 149
IPC & Section 3(1)4 of
PDPP Act and 117 (e)
of KPAct.

Both of Pazhayandi PS

Sl. No.	Case No.	Proceedings No. in the lower court	No. of cases involved with particulars	Period of bond insisted	Date of Order
---------	----------	------------------------------------	--	-------------------------	---------------

23	CrI.MC.No. MC.No.23/2014 1384/2014	1.Cr.No.384/11 143,147,341,342,323, 324,427,365 r/w 149 IPC 2.Cr.No.736/11 u/s 143,147,148,341,323, 324,506(ii) r/w 149 IPC 3. Cr.No.782/12 u/s 143,147,148,283,447, 332,435,427 r/w 149 IPC and Sec.3(1) of PDPP Act. All of Pazhayandi PS	u/s 3 years	07/02/14
----	---------------------------------------	---	-------------	----------

24	Crl.MC.No. MC.No.21/2014 1394/1014	1.Cr.No.383/11 u/s143,147,148,341,323, 324 r/w 149 IPC	3 year	07/02/14
		2. Cr.No.384/11 u/s 143,147,341,323,324, 427,365 r/w 149 IPC		
		3.Cr.No.782/12 u/s 143,148,283,447,332, 435,427 r/w 149 IPC and Sec.3(1) of PDPP Act.		
		All of Pazhayangadi PS		

Sl. No.	Case No.	Proceedings No. in the lower court	No. of cases involved with particulars	Period of bond insisted	Date of Order
25	Crl.MC.No. MC.No.2/2014 1473/2014	1.Cr.No.784/12 143,147,148,452,427, 436 r/w 149 IPC.	u/s 3 years	07/02/14	
		2.Cr.No.785/12 u/s 143,147,148,457,380, 461,427 r/w 149 IPC			
		Both of Chakkarakkal PS			
26	Crl.MC.No. MC.No.3/2014 1474/ 2014	1.Cr.No.784/12 143,147,148,452,427, 436 r/w 149 IPC	u/s 3 years	04/04/14	
		2. Cr.No.785/12 u/s 143,147,148,457,380, 461,427 r/w 149 IPC			
		3.Cr.No.803/12 u/s 143,147,148,452,427 r/w 149 IPC			
		4. Cr.No.1280/12 u/s			

143,147,148,434,326,

308 r/w 149 IPC

All of Chakkarakkal PS

27 CrI.MC.No. MC.35/2014
1604/2014

1.Cr.No.468/12 u/s 1 year 01/03/14
143,147,148,283,353,

332 r/w 149 IPC

2.Cr.No.469/12 u/s
143,148,427 r/w 149
IPC & Sec.3(2) of PDPP
Act.

Both of Peravoor PS

Sl. Case No. Proceedings No. No. of cases involved Period of Date of No. in the lower
with particulars bond Order court insisted 28 CrI.MC.No. MC.24/2014 Cr.No.556/12
u/s 3 years 07/02/14 1666/2014 143,147,148,341,323, 324,506(i) r/w 149 IPC

2. Cr.No.782/12 u/s 143,147,148,341,323, 324,308 r/w 149 IPC

3.Cr.No.894/12 u/s 341,323,324,294(b) r/w 34 IPC All of Peringom PS 29
CrI.MC.No. MC.No.4/2014 1.Cr.No.719/12 u/s 3 years 07/02/14 2778/2014
143,147,148,341,323, 324,506(i) r/w 149 IPC.

2. Cr.No.743/12 u/s 143, 147,148,341,323,324, 326,506(i),308 r/w 149 IPC.

Both of Chakkarakkal
PS.

16. In all these cases, the nature of order issued under Section 111 of the Code is the same. I am not extracting all the preliminary orders passed in the above proceedings, but I am only extracting the order passed in M.C.No.157/2013 as an example for deciding these cases which reads as follows:

Preliminary Order U/Sec 111 Cr.P.C "WHEREAS it appears to me on the basis of the credible information received from the S.I of Police, Payandai Police Station that counter petitioner residing within the local limits of my jurisdiction is likely to create breach of peace and disturb public tranquility within the local limits of my

jurisdiction and as I consider it is necessary that he should be called upon to show cause why he should not be proceeded against u/s 107 of Cr.P.C. They are hereby required to appear before me on 31.7.13 at 10.30 am at my court at Thalassery to show cause why hey/he should not be ordered to execute a bond of Rs.25,000/- (Rupees twenty five thousand only) with two solvent securities each for the like amount for keeping peace for a period of one year.

The counter petitioner involved in following crimes at Payangadi Police Station.

1. Cr.No.789/12 u/s 143,147,148,448,427,436 r/w 149 IPC

2.Cr.No.792/12 u/s 143,145,147,148,341,353,308 r/w 149 IPC & 117 (e) of KP Act & 3(1) of PDPP Act.

The petitioner has reported that the Counter Petitioner is continuously involving in criminal activities and thereby disturb public tranquility in the locality. The petitioner apprehends further breach of peace from the Counter Petitioner and has requested to invoke action u/s.107 of Cr.P.C against the Counter petitioner in order to maintain peace and tranquility in the locality."

17. It is clear from the above order that there is nothing mentioned in the order regarding the reason for the authority to come to a conclusion that the activities of the counter petitioners in that proceedings gave a reasonable apprehension in the mind of the authority that they are likely to cause breach of peace and disrupt public tranquility at a particular time at a particular place which requires immediate intervention of the authorities to prevent such activities and for that purpose, they have to be called upon to enter on a bond to keep good behaviour for a particular period. In that case, the learned Sub Divisional Magistrate has only extracted the wordings in the printed form and extracted the case numbers in which the counter petitioner was made an accused. He had not mentioned as to how far that is relevant for the purpose of considering the question as to whether the counter petitioners have to be called upon to enter on a bond to prevent public tranquility or breach of peace in the locality. As discussed above, the very purpose of initiating proceedings under Section 107 of the Code is to prevent public tranquility and breach of peace expected to be committed by the counter petitioners at a particular place at a particular time or period of time and it was intended to prevent that, that they are called upon to enter on a bond for good behaviour for a particular period, so that they can be prevented from participating in any act causing anticipated public tranquility or breach of peace in a particular place for a particular time. On a reading of the impugned order will go to show that there is nothing to infer from that order even to infer, the reason for the learned Sub Divisional Magistrate to come to such a conclusion that the counter petitioner must be asked to enter into a bond for the purpose mentioned under Sections 107 to 111 of the Code. The learned Magistrate has only reproduced the form without application of mind simply extracting the case numbers in which the counter petitioners were made accused. It is settled law that merely because the counter petitioner was made an accused in a case alone is not sufficient to initiate proceedings against him under Section 107 of the Code. The purpose behind the initiation of proceedings is that there is an apprehension in the mind of the authorities that a particular person or set of persons is/are likely to involve in certain activities which is likely to create breach of peace

and disrupt public tranquility in a particular place and presence of such persons in that place itself will be sufficient for that purpose and it is in the public interest that has to be prevented and for that purpose the proceedings will have to be initiated on the basis of the information received by the Sub Divisional Magistrate from the police or from other reliable sources and on that basis , he will have to satisfy the existence of such imminent necessity to initiate proceedings against that particular person and called upon to execute bond on good behaviour for a particular period so as to prevent that person causing any breach of peace or public tranquility in a particular place at that particular time. But a reading of the order of the Sub Divisional Magistrate will go to show that there is no application of mind by the learned Sub Divisional Magistrate in all these cases, but simply extracted the form quoted some crime numbers some of them were committed some two or three years ago and issued the order without passing any order as contemplated under Section 111 of the Code so as to enable the counter petitioner to meet the grounds on which the proceedings have been initiated against him and as such, the procedure adopted by the Sub Divisional Magistrate, Thalassery in initiating proceedings against the petitioners is illegal and without application of mind and the same are liable to be quashed as it is not passed in terms of the provisions provided under Sections 107 to 111 of the Code. So, the petitioners are entitled to the relief claimed in these petitions.

18. Crl.M.C.No.3207/2013:

Petitioner is the counter petitioner in M.C.No.157/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.157/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

19. Crl.M.C.No.3375/2013:

Petitioner is the counter petitioner in M.C.No.159/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting three cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.159/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

20. Crl.M.C.No.3409/2013:

Petitioner is the counter petitioner in M.C.No.158/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting three cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed

and further proceedings in M.C.No.158/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

21. Crl.M.C.No.3972/2013:

Petitioner is the counter petitioner in M.C.No.184/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting three cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.184/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

22. Crl.M.C.No.3973/2013:

Petitioner is the counter petitioner in M.C.No.183/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting four cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.183/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

23. Crl.M.C.No.4117/2013:

Petitioner is the counter petitioner in M.C.No.138/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting three cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.138/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

24. Crl.M.C.No.4131/2013:

Petitioner is the counter petitioner in M.C.No.202/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.202/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

25. Crl.M.C.No.4132/2013:

Petitioners are the counter petitioners in M.C.No.188/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which they were made accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.188/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

26. Crl.M.C.No.4133/2013:

Petitioner is the counter petitioner in M.C.No.203/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.203/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

27. Crl.M.C.No.4134/2013:

Petitioner is the counter petitioner in M.C.No.204/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.204/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

28. Crl.M.C.No.4135/2013:

Petitioner is the counter petitioner in M.C.No.189/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting four cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.189/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

29. Crl.M.C.No.4136/2013:

Petitioner is the counter petitioner in M.C.No.187/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above

decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.187/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

30. CrI.M.C.No.4137/2013:

Petitioner is the counter petitioner in M.C.No.141/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting four cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.141/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

31. CrI.M.C.No.4138/2013:

Petitioner is the counter petitioner in M.C.No.205/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.205/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

32. CrI.M.C.No.4139/2013:

Petitioners are the counter petitioners in M.C.No.206/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which they were made accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.206/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

33. CrI.M.C.No.4320/2013:

Petitioners are the counter petitioners in M.C.No.240/2013 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which they were made accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.240/2013 of Sub Divisional Magistrate, Thalassery is hereby quashed.

34. Crl.M.C.No.1253/2014:

Petitioner is the counter petitioner in M.C.No.18/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting three cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.18/2014 of Sub Divisional Magistrate, Thalassery is hereby quashed.

35. Crl.M.C.No.1254/2014:

Petitioners are the counter petitioners in M.C.No.16/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting three cases in which they were made accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.16/2014 of Sub Divisional Magistrate, Thalassery is hereby quashed.

36. Crl.M.C.No.1255/2014:

Petitioners are the counter petitioners in M.C.No.15/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting a case in which they were made accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.15/2014 of Sub Divisional Magistrate, Thalassery is hereby quashed.

37. Crl.M.C.No.1256/2014:

Petitioners are the counter petitioners in M.C.No.17/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting a case in which they were made accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.17/2014 of Sub Divisional Magistrate, Thalassery is hereby quashed.

38. Crl.M.C.No.1257/2014:

Petitioners are the counter petitioners in M.C.No.14/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting a case in which they were made

accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.14/2014 of Sub Divisional Magistrate, Thalassery is hereby quashed.

39. Crl.M.C.No.1383/2014:

Petitioner is the counter petitioner in M.C.No.22/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.22/2014 of Sub Divisional Magistrate, Thalassery is hereby quashed.

40. Crl.M.C.No.1384/2014:

Petitioner is the counter petitioner in M.C.No.23/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting three cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.23/2014 of Sub Divisional Magistrate, Thalassery is hereby quashed.

41. Crl.M.C.No.1394/2014:

Petitioner is the counter petitioner in M.C.No.21/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting three cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.21/2014 of Sub Divisional Magistrate, Thalassery is hereby quashed.

42. Crl.M.C.No.1473/2014:

Petitioners are the counter petitioners in M.C.No.2/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which they were made accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.2/2014 of Sub Divisional Magistrate, Thalassery

is hereby quashed.

43. Crl.M.C.No.1474/2014:

Petitioner is the counter petitioner in M.C.No.3/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting four cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.3/2014 of Sub Divisional Magistrate, Thalassery is hereby quashed.

44. Crl.M.C.No.1604/2014:

Petitioners are the counter petitioners in M.C.No.35/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which they were made accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.35/2014 of Sub Divisional Magistrate, Thalassery is hereby quashed.

45. Crl.M.C.No.1666/2014:

Petitioners are the counter petitioners in M.C.No.24/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting three cases in which they were made accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.24/2014 of Sub Divisional Magistrate, Thalassery is hereby quashed.

46. Crl.M.C.No.2778/2014:

Petitioner is the counter petitioner in M.C.No.4/2014 of Sub Divisional Magistrate, Thalassery. In this case except extracting two cases in which he was made an accused and without disclosing the reasons which lead the authority to initiate proceedings without application of mind and against the principles laid down in the above decisions and so the same is liable to be quashed and the application is allowed and further proceedings in M.C.No.4/2014 of Sub Divisional Magistrate, Thalassery is hereby quashed.

All the petitions are allowed for the reasons stated above and the proceedings initiated against the petitioners in all these cases are hereby quashed. It is made clear

that this will not be a bar for the Sub Divisional Magistrate to initiate fresh proceedings against the petitioners, if they are satisfied that situation still prevails so as to initiate proceedings against them under Section 107 of the Code after complying with all the procedures and guidelines provided in this judgment in accordance with law.

Sd/-

K. RAMAKRISHNAN, JUDGE.

bb/cl /true copy/ P.S to Judge